BUILD philly NOW

MEMORANDUM

To Interested Parties
From Jon Geeting, Director of Policy and Advocacy, Build Philly Now
Date November 5, 2026
Re Priorities for Pennsylvania housing and zoning legislation in the 2027-28 session

2027-28 SESSION

Housing Bill Prioritization for the 2027-28 Session

With unified Democratic control of Harrisburg, the floodgates are about to open: many housing bills will move in 2027-28. This memo shows decision makers which housing supply reforms already have public support, legislator support or the Governor's backing. It also gives each concept a **policy score**, which rates its effectiveness, low administrative burden, low fiscal cost and fit with the Governor's priorities. It then recommends where to start. Other groups will push their own bills too. This memo lays out the record behind ours.

139-62
House vote on statewide ADUs (HB 2186), June 2026. 38 Republicans voted yes.

21 of 26
Senators on record for ADUs (9 committee yes votes, 12 signed without a vote), against the 26 votes needed to pass the 50-member Senate

6
Supply concepts with a perfect policy score (45 of 45). All are rule changes with no state cost.

84%
of Pennsylvania voters support allowing homes near businesses and shopping; 78% of Republicans (YouGov, March 2026)

BOTTOM LINE

- **Lead with ADUs, then occupancy.** ADUs pair a perfect policy score with the highest readiness of any zoning concept. Use HB 2186 as the starting point, review the Senate bills (SB 1346, SB 1256 (ADUs)) for improvements, and produce one ADU bill that covers every municipality, including Philadelphia and Pittsburgh. Occupancy (SB 1263) is next: the House passed its companion 123-78.
- **Six concepts earn a perfect policy score:** ADUs, occupancy, commercial-zone housing, parking mandates, minimum lot size (starter homes on smaller lots) and manufactured homes. Transit-oriented development and missing middle score 43 of 45. Most need bills and champions.
- **Move one concept per bill.** SB 1126 (2023-24 zoning omnibus), backed by Sens. Rothman, Laughlin, Saval and Kearney, supplies text for several standalone bills.
- **Top new bill: housing on faith-owned and state-owned land.** The Governor's plan names it and no one has introduced it.
- **Fill the Senate gaps.** Parking mandates, minimum lot size and manufactured homes have no Senate bill. Lot size and manufactured homes have no bill in either chamber.
- **Preservation is a separate track.** Tangled title, home repair and the historic tax credit have broad support but add few homes, and the last two need state money. They complement supply; they can't substitute for it.

1. The landscape

- **The House was never the problem.** HB 2186 (ADUs) passed 139-62 and HB 2109 (occupancy) 123-78. Both died in the Republican-controlled Senate Urban Affairs committee. Under unified control, these bills can get a Senate vote.
- **What passed got weaker to pass.** SB 1281 (pre-approved housing plans) applied only narrowly, and even then passed the Senate 50-0 only after an amendment required projects to comply with existing zoning. In the House, HB 2109 (occupancy) picked up an explicit five-person cap on unrelated housemates before it passed. The 2027-28 versions should return to the stronger texts.
- **The Governor's agenda points to statewide standards.** His budget address calls for a catalog of local zoning rules, and his Housing Action Plan proposes model ordinances and a "Housing-Ready" designation. Statewide standards deliver the same goals without asking DCED to review 2,560 municipalities one by one. He named "standards for accessory dwelling units," transit-oriented development, and mixed use on commercial corridors, and the plan names lot size, setbacks, manufactured homes, parking and occupancy (pp. 26, 32). The plan is silent on preemption; nothing in it argues against a statewide standard.
- **Coverage matters.** Bills that amend the Municipalities Planning Code skip Philadelphia and Pittsburgh. Each bill should include Philadelphia and Pittsburgh.

2. Supply concepts at a glance

One row per concept, scored on the concept at its best: the version BPN would write, not any one bill's current text. Each concept gets two scores. The **policy score** (effectiveness ×3, low admin burden ×2, Governor ×2, low fiscal cost ×2; maximum 45) measures what the policy would do. Fiscal cost is inverted like admin burden: 5 means no state cost, 1 means a large recurring appropriation or tax expenditure. **Readiness** is lawmaker support today (0-5: High 3.5+, Medium 1.5-3.5, Low below 1.5). The table is sorted by policy score. Each criterion is 0-5; ✓ marks a score of 4 or more. Transit-oriented development is scored as by-right density and no parking mandates near rail and frequent bus; permit-growth payments as a formula payment per new permitted unit per capita, from Census data. (The bill ranking in section 5 and the appendix scores actual bill texts and combines all five criteria, out of 60.)

Concepts with no bill, vote or memo yet show readiness as "No record." Minimum lot size reform includes a staff-approved path to split a lot, so that smaller minimums produce starter homes without a full subdivision approval for each split.

Concept	Effect.	Low admin	Gov.	Low cost	Policy score of 45	Readiness support, 0-5	Cost to the state	Introduced
ADUs	✓ 5	✓ 5	✓ 5	✓ 5	**45**	High 3.9	No state cost	Both
Occupancy limits (unrelated housemates)	✓ 5	✓ 5	✓ 5	✓ 5	**45**	Medium 3.1	No state cost	Both
Housing by right in commercial zones	✓ 5	✓ 5	✓ 5	✓ 5	**45**	Low 0.8	No state cost	Both
Parking mandates	✓ 5	✓ 5	✓ 5	✓ 5	**45**	Low 0.4	No state cost	House only
Minimum lot size reform (starter homes on smaller lots)	✓ 5	✓ 5	✓ 5	✓ 5	**45**	Low 0.2	No state cost	Neither
Manufactured homes in single-family zones	✓ 5	✓ 5	✓ 5	✓ 5	**45**	Low 0.2	No state cost	Neither
Duplexes to fourplexes (missing middle)	✓ 5	✓ 5	✓ 4	✓ 5	**43**	Low 0.9	No state cost	House only
Transit-oriented development	✓ 5	✓ 4	✓ 5	✓ 5	**43**	Low 0.1	No state cost	Neither
Local permitting speed, certainty and accountability	✓ 5	✓ 4	✓ 5	✓ 5	**43**	No record	Applicants pay review fees	Neither
Housing on faith-owned and state-owned land	✓ 5	✓ 4	✓ 5	✓ 5	**43**	No record	No state cost	Neither
Objective design standards / staff approval	✓ 4	✓ 5	✓ 4	✓ 5	**40**	Low 0.2	No state cost	Neither
Land bank disposition reform	✓ 4	✓ 4	✓ 4	✓ 5	**38**	No record	No state cost	Neither
State-agency permit shot clock	✓ 4	3	✓ 4	✓ 4	**34**	Medium 2.5	Agency process changes	Senate only
Permit-growth payments to municipalities	✓ 4	✓ 5	✓ 4	2	**34**	Low 1.1	State funding (formula payments)	Both
Single-stair buildings	✓ 4	3	3	✓ 5	**34**	Low 0.9	No state cost	Senate only
Housing bond	✓ 4	3	✓ 5	2	**32**	No record	State borrowing (loans repaid; grants not)	Neither
Bigger PHARE (raise its revenue cap)	3	✓ 4	✓ 5	2	**31**	No record	Realty transfer tax revenue redirected to PHARE	Neither
Mall/greyfield redevelopment tax abatement	2	✓ 4	✓ 4	✓ 4	**30**	High 4.6	Local tax revenue (opt-in)	House only
LERTA abatement for housing	2	✓ 4	3	✓ 4	**28**	High 4.6	Local tax revenue (opt-in)	Senate only
RACP money for housing	2	3	✓ 5	3	**28**	Low 1.0	State bond funds	Both
Residential Reinvestment Tax Credit	3	3	✓ 5	1	**27**	No record	State tax expenditure (new credit)	Neither
Regular property reassessment	3	3	0	✓ 4	**23**	Low 0.2	County cost (fee allowed)	Senate only
Enforcement of state housing standards	n/a	n/a	n/a	n/a	not scored	Low 0.0	Depends on design	Neither



Figure 1. Policy score by concept, with readiness. Segment length is the weighted points from effectiveness, admin, Governor alignment and fiscal cost. Readiness (lawmaker support today) is noted at the end of each bar. The highest-scoring policies, including TOD, missing middle, lot size and manufactured homes, have low readiness: they need new bills and champions. The tax abatements are the reverse: high readiness, weaker mechanisms, and they cost local tax revenue. Permit-growth payments lose points for needing a state appropriation. Preservation concepts appear separately in section 7.

3. Where support already is

Every supply concept, with each kind of support side by side. Counts are **current** legislators on any bill carrying the concept, excluding members not returning in 2027 (unofficial results). "Voted" is each member's latest committee or floor vote; "signed only" is a cosponsor or memo signer with no recorded vote. Voters: YouGov polls (Figure 3). Readiness (0-5) weighs a yes vote fully and a signature half, against the votes needed to pass.

Concept	House voted yes–no	House signed only	Senate voted yes–no	Senate signed only	Republicans on record	Passed a chamber 2025-26	Governor	Voters % support	Readiness 0-5
Mall/greyfield redevelopment tax abatement*	94–81	1	23–1	2	16	—	Plan goal	—	High 4.6
LERTA abatement for housing*	94–81	1	23–1	2	16	—	Related	—	High 4.6
ADUs	137–60	0	9–0	12	45	House 139-62	Named	66%	High 3.9
Occupancy limits (unrelated housemates)	120–77	0	0–0	12	37	House 123-78	Named	65%	Medium 3.1
State-agency permit shot clock	0–0	0	27–19	0	23	Senate 30-20	Plan goal	79%	Medium 2.5
Permit-growth payments to municipalities	0–0	14	8–1	3	6	—	Plan goal	—	Low 1.1
RACP money for housing	14–12	14	0–0	10	1	—	Named	—	Low 1.0
Duplexes to fourplexes (missing middle)	13–12	24	0–0	5	4	—	Plan goal	69%	Low 0.9
Single-stair buildings	0–0	18	0–0	14	3	—	Related	—	Low 0.9
Housing by right in commercial zones	14–11	29	0–0	3	2	—	Named	84%	Low 0.8
Parking mandates	0–0	11	0–0	5	4	—	Named	60%	Low 0.4
Minimum lot size reform (starter homes on smaller lots)	0–0	0	0–0	5	3	—	Named	65% (2024)	Low 0.2
Manufactured homes in single-family zones	0–0	0	0–0	5	3	—	Named	74% (2024)	Low 0.2
Objective design standards / staff approval	0–0	19	0–0	0	0	—	Plan goal	79%	Low 0.2
Regular property reassessment	0–0	2	0–0	4	0	—	Not mentioned	—	Low 0.2
Transit-oriented development	0–0	7	0–0	0	0	—	Named	81%	Low 0.1
Local permitting speed, certainty and accountability	No bill, vote or memo yet					—	Named	79%	No record
Housing on faith-owned and state-owned land	No bill, vote or memo yet					—	Named	—	No record
Land bank disposition reform	No bill, vote or memo yet					—	Plan goal	—	No record
Housing bond	No bill, vote or memo yet					—	Named	—	No record
Bigger PHARE (raise its revenue cap)	No bill, vote or memo yet					—	Named	—	No record
Residential Reinvestment Tax Credit	No bill, vote or memo yet					—	Named	—	No record

* The two tax abatements share one support count: HB 1446 (malls and greyfields) drew the House votes and SB 1277 (LERTA) the Senate votes. Governor: "Named" means the budget address or plan names the concept; "Plan goal" means the plan states the goal without naming the tool; "Related" means adjacent language only.

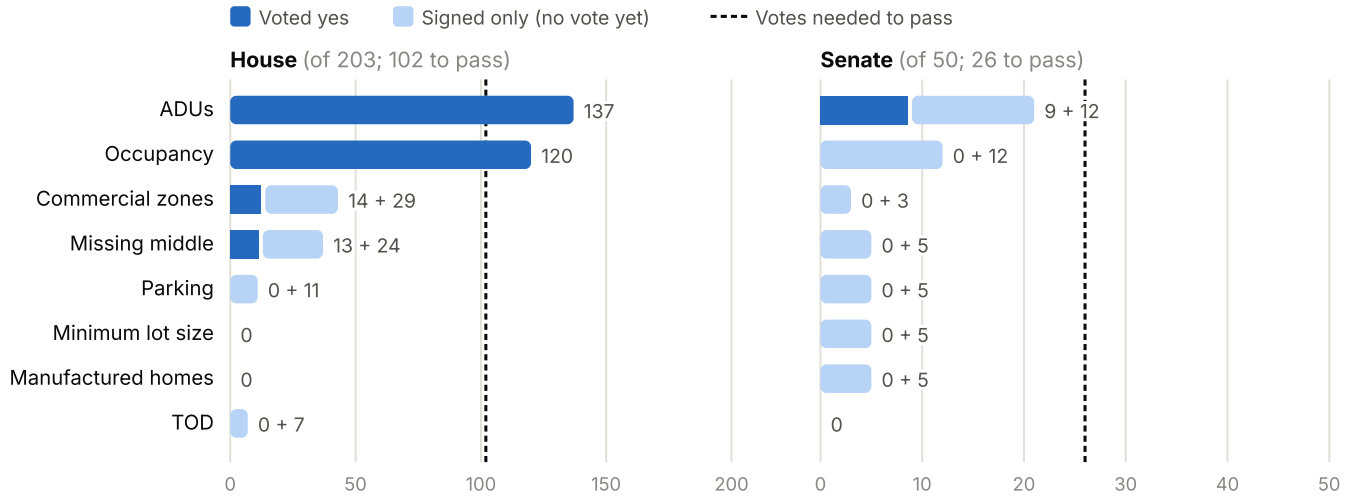


Figure 2. Legislators on record, by chamber, against the votes needed to pass. The House has voted on ADUs and occupancy. In the Senate, only ADUs come close to 26 (9 yes votes + 12 signatures), and none of the SB 1126 concepts has a single recorded Senate vote.

Bipartisan Senate support for the SB 1126 concepts

Senator	ADUs	Missing middle	Parking	Lot size	Mfd. homes	Occupancy	Commercial
Greg Rothman (R-34)	○ Prime	○ Memo	○ Memo	○ Memo	○ Memo	—	—
Daniel Laughlin (R-49)	○ Memo	○ Memo	○ Memo	○ Memo	○ Memo	—	—
Nikil Saval (D-1)	●	○ Cosp.	○ Cosp.	○ Cosp.	○ Cosp.	○ Prime	○ Cosp.
Timothy Kearney (D-26)	○ Memo	○ Cosp.	○ Cosp.	○ Cosp.	○ Cosp.	○ Cosp.	—

● voted yes on a bill in this area · ○ signed (prime sponsor, memo co-author or cosponsor) without a vote · — no record. Source: palegis.us bill pages, memos and roll calls.

All four have signed the ADU, missing-middle, parking, lot-size and manufactured-home concepts through SB 1126. None has yet voted on any of them except ADUs (Saval, in committee). Their record makes them well placed to carry standalone Senate bills on these concepts. Sens. Vogel and Argall (R) are also on record on ADUs, commercial conversion and single-stair.

Voters back these reforms

Two YouGov polls of Pennsylvania registered voters asked about most of these concepts. Every reform tested drew majority support, and a majority of Republicans backed each one. Housing in commercial zones, transit-oriented development and permitting reform poll best; occupancy reform and parking poll lowest, though still at 60% or more.

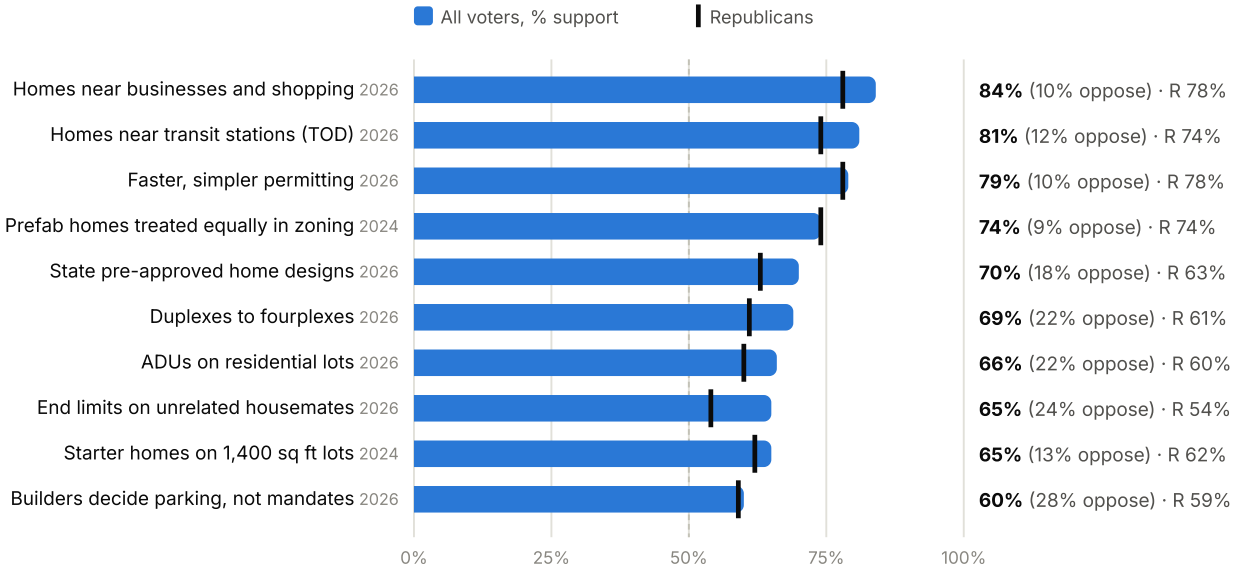


Figure 3. Voter support for housing reforms in Pennsylvania. Bars show the share of all registered voters who support each proposal; the black tick marks Republicans. 2026: YouGov for 10,000 Friends of Pennsylvania, 824 registered voters, March 5-12, 2026, margin of error ±3.7 (memo, crosstabs). 2024: YouGov for the Welcoming Neighbors Network, 801 registered voters, April 4-17, 2024, ±3.9 (memo, crosstabs), used only for items the 2026 poll did not ask. Parking was a choice between two statements, not support or oppose. Republican figures add the crosstabs' strongly- and somewhat-support shares.

4. Where the supply bills are

Concept	House	House bill	Senate	Senate bill
ADUs	●●●	HB 2186 · Rep. Inglis (D)	●●○	SB 1346 · Sen. Rothman (R) SB 1256 · Sen. Collett (D)
Occupancy limits	●●●	HB 2109 · Rep. Khan (D)	●○○	SB 1263 · Sen. Saval (D)
Housing in commercial zones	●○○	HB 1459 · Rep. Siegel (D)	●○○	SB 1239 · Sen. Coleman (R)
Parking mandates	●○○	HB 2155 · Rep. Scott (D)	○○○	—
Missing middle	●○○	HB 2185 · Rep. Inglis (D)	○○○	—
Minimum lot size reform	○○○	—	○○○	—
Manufactured homes	○○○	—	○○○	—
Transit-oriented development	○○○	memo only	○○○	—
Mall/greyfield abatement	●●○	HB 1446 · Rep. Siegel (D)	○○○	—
LERTA for housing	○○○	—	●●○	SB 1277 · Sen. Stefano (R)
RACP for housing	●●○	HB 2367 · Rep. Boyd (D)	●○○	SB 294 · Sen. Hughes (D)
State permit shot clock	○○○	—	●●●	SB 1279 · Sen. Phillips-Hill (R)
Single-stair (study only)	○○○	—	●○○	SR 348 · Sen. Street (D)
Objective design standards	○○○	2023-24 only	○○○	—
Local permitting speed and certainty	○○○	—	○○○	—
Regular reassessment	○○○	memo only	●○○	SB 567 · Sen. Fontana (D)
Faith- and state-owned land	○○○	—	○○○	—
Land bank disposition	○○○	—	○○○	—
Reinvestment tax credit	○○○	—	○○○	—
Bigger PHARE	○○○	—	○○○	—

Figure 4. Furthest step reached in 2025-26, by chamber. Dots: introduced · committee vote · passed the chamber. Bills are listed with their prime sponsor and party. Concepts in red have no bill in either chamber.

5. The ranked supply bills (Tier 1)

#	Bill	What it does	Furthest stage	Cosponsors D / R	Support	Score
1	HB 2186 John Inglis III (D-38)	Accessory Dwelling Units	Passed House; died in Senate Urban Affairs & Housing	26 (24 / 2)	3.9	**56.7**
1	SB 1256 Maria Collett (D-12)	Accessory Dwelling Units (Collett)	Referred to Senate Urban Affairs & Housing; no action	6 (6 / 0)	3.9	**56.7**
3	SB 1263 Nikil Saval (D-1)	Municipal Occupancy Reform (Golden Girls Law, Senate)	Referred to Senate Urban Affairs & Housing; no action	11 (10 / 1)	3.1	**54.3**
4	SB 1346 Greg Rothman (R-34)	Accessory Dwelling Units (Senate)	Reported from Senate Urban Affairs & Housing; first consideration	12 (8 / 4)	3.9	**53.7**
5	HB 2109 Tarik Khan (D-194)	Occupancy Reform (Golden Girls Law)	Passed House; died in Senate Urban Affairs & Housing	25 (24 / 1)	3.1	**48.3**
6	SB 1239 Jarrett Coleman (R-16)	Residential in Commercial Zones	Referred to Senate Local Government; no action	3 (1 / 2)	0.8	**47.4**
7	HB 2155 Greg Scott (D-54)	Parking Flexibility	Referred to House H&CD; no action	10 (9 / 1)	0.4	**46.2**
8	HB 1446 Joshua Siegel (D-22)	Redevelopment of Malls, Greyfields and Brownfields (tax abatement)	Reported from House Local Government and Rules; laid on table (Rule 71)	10 (9 / 1)	4.6	**43.8**
9	HB 1459 Joshua Siegel (D-22)	Multi-Family Housing in Commercial Zones	Referred to House Local Government; no action	14 (14 / 0)	0.8	**42.4**
10	SB 1277 Patrick Stefano (R-32)	Property Tax Abatement for Housing Redevelopment	Passed Senate second consideration; re-referred to Rules	5 (1 / 4)	4.6	**41.8**

Full supply ranking in Appendix A; preservation bills are ranked separately in Appendix B. Scores update automatically from the data files.

6. Recommended approach: one concept per bill

WAVE 1 · VOTES ON RECORD

Move first

ADU bill (HB 2186 as the base, all municipalities) · Occupancy (SB 1263 text)

WAVE 2 · STRONG TEXT, NEEDS SUPPORT

Build support

Parking mandates (HB 2155) · Commercial zones (SB 1239 substance, all municipalities) · Missing middle (HB 2185)

WAVE 3 · NEW BILLS

Introduce

Senate parking bill · Minimum lot size reform · Manufactured homes · Single-stair · Transit-oriented development · Enforcement

The Governor's "modernize the Municipalities Planning Code" language becomes the umbrella message for the package, not a single bill.

Bills that still need to be introduced

Grouped by how clearly the Governor has backed each idea: "Named" means the budget address or plan names it; "Plan goal" means the plan states the goal; "Related" means adjacent language only.

Named by the Governor

Concept	House	Senate	Draft from	Governor
Housing on faith-owned and state-owned land (BPN's top new priority)	None	None	New text: housing by right on land owned by religious institutions; surplus state land, and land owned by counties, school districts and transit agencies, offered for housing first	**Named** · p. 32
Local permitting speed, certainty and accountability (BPN draft concept)	None	None	New text: staff approve applications that meet clear, objective standards, with no hearings; applicants may use county or certified third-party review on a fixed deadline; towns that lose an appeal refund fees, like the state's money-back guarantee for state permits (p. 10). Polls at 79% (2026) and 83% (2024)	**Named** · p. 31
Transit-oriented development	Memo 47776 only	None	New text: by-right density, no parking mandates near rail and frequent bus	**Named** · budget address
Parking mandates	HB 2155 (Scott)	None	HB 2155's one-sentence repeal of parking mandates; SB 1126 caps as a fallback	**Named** · p. 32
Minimum lot size reform (starter homes on smaller lots)	None	None	SB 1126 s. 603(p): no minimum over 1,400 sq ft where water and sewer exist, plus a staff-approved path to split a lot. A 1,400 sq ft minimum lot size polls at 65% (2024)	**Named** · pp. 10, 32
Manufactured homes	None	None	SB 1126 s. 603(m): by right where single-family homes are allowed, not confined to parks	**Named** · p. 32
Housing bond	None	None	A state bond for a mixed-income revolving loan fund and home repair; the Governor's $1B bond-backed fund is the starting point (see below)	**Named** · budget address; p. 20
Residential Reinvestment Tax Credit	None	None	New state credit closing the gap where building costs exceed sale prices or rents, for large sites and scattered infill	**Named** · p. 21
Bigger PHARE	None	None	Raise the realty transfer tax revenue cap on PHARE, now $100 million (p. 11)	**Named** · p. 35; budget address
Funds for small and first-time builders	None	None	Regional funds offering low-cost financing to builders doing their first projects, paired with training	**Named** · p. 22
State housing credit for small projects	None	None	Use the state low-income housing tax credit for 10-23 unit and scattered-site projects too small for the federal credit	**Named** · pp. 35-36

Plan goals, related ideas and others

Concept	House	Senate	Draft from	Governor
Missing middle	HB 2185 (Inglis)	None	HB 2185, with the proof-of-concurrency clause narrowed	**Plan goal** · p. 32
Land bank disposition reform	None	None	New text: faster, simpler disposition of land bank properties to builders and residents. HB 743 and HB 1713 address acquisition and liability, not disposition	**Plan goal** · pp. 32-33
Enforcement of state housing standards	None	None	Design open; options include county and DCED review, Attorney General authority and a private right of action (see below)	**Related** · p. 31
Single-stair buildings	None	SR 348 (study only)	A statute requiring the building code to allow single-exit stairways up to six stories, with sprinklers and other fire-safety conditions, by a set date	**Related** · p. 31
Regular property reassessment	Memo 48543 only (Mazzocco, Kinkead)	SB 567 (Fontana)	SB 567: every county reassesses on a state schedule; counties that fall behind lose liquid fuels payments	**Not mentioned** · —

The manufactured-home community rights bills, SB 1446 (Santarsiero) and HB 2098 (Ciresi), "provide for manufactured homes" but rewrite tenant rights in manufactured-home communities. They contain no zoning provisions.

Funding: a housing bond

The Governor proposed "a new $1 billion Critical Infrastructure Fund, supported by the issuing of bonds, that will go toward housing" (budget address). His plan says the fund should use "a combination of grants, low-interest loans, and loan guarantees" and support "middle market housing development" (p. 20). Borrowing costs have risen since, which makes any bond more expensive. A bond is still the most direct way to pay for the parts of the agenda that need money. BPN would put the proceeds toward two uses:

- **A revolving loan fund for mixed-income housing,** modeled on Montgomery County, Maryland's $100 million Housing Production Fund. It makes five-year construction loans to mixed-income projects with at least 30% of units income-restricted, then relends the money as it is repaid (HOC, NACo).
- **Home repair** (HB 1650/SB 876), which has gone three budgets without state money (Capital-Star).

The bond and the zoning bills reinforce each other: by-right rules lower what each project costs, and the fund pays for more of them.

Who enforces? An open design question

A statewide standard is only as strong as its enforcement. Today the main enforcer is the applicant who gets denied: validity challenges, curative amendments and deemed-approval suits are slow, paid for by the applicant, and award no attorney's fees. Enforcement should be settled alongside the standards themselves. The specific choices lawmakers make will determine how much it asks of the state, so we do not score it yet.

Options under discussion, which could be combined:

- **County planning commissions** flagging noncompliance in the zoning reviews they already conduct.
- **DCED review** of municipalities, ideally triggered by complaints rather than routine audits.
- **Attorney General authority** to sue noncompliant municipalities. Pennsylvania has a precedent in the ACRE law for local agricultural ordinances (Act 38 of 2005).
- **A private right of action** for applicants, residents, housing advocacy organizations and public-interest law firms, with attorney's fees.
- **Loss of discretionary state grant eligibility** for noncompliant municipalities, including high-usage programs such as DCNR parkland grants.

One principle holds regardless of the details: **complaint-driven enforcement asks far less of the state than audit-driven verification.**

	Audit-driven verification REDD grants, Housing-Ready designation, zoning catalog	**Complaint-driven enforcement**
Who does the work	The state reviews every participating municipality and confirms follow-through	The state acts when someone complains
Workload grows with	The number of municipalities (up to 2,560)	The number of disputes
If the state is slow	Nothing changes; the incentive is simply not paid	The statewide standard still applies

7. Preservation track: separate from supply

COMPLEMENTS SUPPLY REFORM; DOESN'T REPLACE IT

These bills keep existing homes and buildings livable, owned and in use. They have some of the broadest support in the legislature, but they add few or no new homes. Home repair and a larger historic credit also need state money, while most of the supply agenda costs the state nothing. Passing these instead of the supply bills would leave the shortage where it is.

Concept	Effect.	Low admin	Gov.	Low cost	Policy score of 45	Readiness support, 0-5	Cost to the state	Introduced
Transfer-on-death deeds (tangled title)	2	✓ 5	✓ 5	✓ 5	**36**	High 3.9	No state cost	Both
Heirs-property partition protections (tangled title)	2	✓ 4	✓ 4	✓ 5	**32**	High 3.9	Court process	Both
Small-estate home affidavit (tangled title)	3	3	✓ 4	✓ 4	**31**	High 3.9	County and court process	Both
Historic preservation tax credit expansion	3	✓ 4	3	1	**25**	Medium 3.4	State tax expenditure (program cap now $20M a year)	Both
Home repair grants (Whole-Home Repairs successor)	2	2	✓ 5	1	**22**	Medium 3.4	Annual state appropriation (budget line exists, unfunded)	Both

Concept	House	House bill	Senate	Senate bill
Transfer-on-death deeds	●●●	HB 2124 · Rep. Briggs (D)	●●○	SB 890 · Sen. Bartolotta (R)
Heirs-property protections	●●●	HB 1498 · Rep. Rabb (D)	●●○	SB 890 · Sen. Bartolotta (R)
Small-estate home affidavit	●○○	HB 2172 · Rep. Scott (D)	●○○	SB 1203 · Sen. Malone (D)
Home repair grants	●●●	HB 1650 · Rep. Powell (D)	●○○	SB 876 · Sen. Argall (R)
Historic tax credit	●●●	HB 1572 · Rep. Goughnour (D)	●○○	SB 1356 · Sen. Flynn (D) SB 1394 · Sen. Farry (R)

Figure 5. Preservation bills: furthest step reached in 2025-26. Dots: introduced · committee vote · passed the chamber.

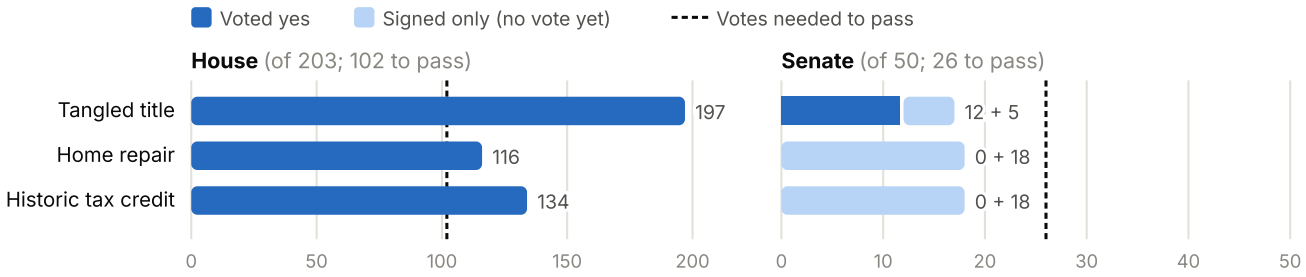


Figure 6. Legislators on record for preservation, by chamber. All three have passed the House. In the Senate, 12 senators voted for SB 890 (heirs property and transfer-on-death deeds) in committee; home repair has 18 Senate signers and the historic credit 18, with no Senate votes yet on either.

- **Tangled title.** The plan counts about 35,000 heirs' properties statewide and over 10,000 tangled titles in Philadelphia, and names "transfer-on-death deeds for primary residences" (pp. 15, 24). HB 2124

(transfer-on-death deeds) passed the House 202-0. SB 890 (Bartolotta, R) cleared Senate Judiciary 14-0. No state cost beyond court and county process.

- **Home repair.** HB 1650 (Home Preservation Grant Program) passed the House 122-80. It would succeed the 2022 Whole-Home Repairs program, which passed with bipartisan support and $125 million in one-time federal aid; 3,965 of about 17,000 applicants got help (Capital-Star). The plan quotes roundtable participants calling Whole-Home Repairs "key to maintaining our naturally occurring affordable housing" and counts 16,500 units on repair waitlists (pp. 11-12). Republicans have since pulled their support. In 2024 the money stalled after the Governor signed the budget, with Senate Republicans saying it needed enabling legislation (WHYY). The 2025-26 budget left it out, the third year without a state-funded successor (Capital-Star). House Republicans voted 20-80 on HB 1650. The Senate version, SB 876, is co-authored by Sens. Argall (R) and Saval (D). The plan calls for a "state-sponsored home preservation fund" (p. 21). **It needs an annual appropriation.**
- **Historic preservation tax credit.** The credit pays for rehabilitating historic buildings, including conversions to housing. Current law caps it at $20 million a year statewide and $500,000 per taxpayer. HB 1572 (Goughnour, D) passed the House 141-62 (D 102-0, R 39-62). It and the Senate bills, SB 1356 (Flynn, D) and SB 1394 (Farry, R), would raise only the per-taxpayer cap, to $1.5 million (bill text). None raises the $20 million program cap. Peer states go much further: Kentucky's cap rose from $5 million to $100 million a year (Novogradac), and Ohio's base cap was $60 million, temporarily doubled to $120 million for 2023-24 (Vorys, 2022). BPN's version would remove the per-project cap or raise it sharply and lift the program cap toward those levels. It is a tax expenditure, so it scores 1 of 5 on fiscal cost. The plan supports state money for conversions and upper-floor rehab (p. 20) but does not name the credit.

8. Recommended changes to bill text

1. **Every bill:** introduce it in both chambers with the same initial text, to minimize the differences that must be reconciled after each chamber acts.
2. **Every by-right bill:** add SB 1256's clause making noncompliant local ordinances void by a date, with the state standard applying meanwhile.
3. **ADUs:** use HB 2186 as the starting point, clarify and strengthen its minimum building and impervious coverage entitlement, and add a 14-day deemed approval.
4. **Occupancy:** use SB 1263's clean ban; drop HB 2109's five-person authorization and student carve-out.
5. **Missing middle:** narrow HB 2185's proof-of-concurrency clause.
6. **Commercial zones:** drop the growing-county test in HB 1459 (housing in commercial zones) and add the density, lot-size and setback waivers from SB 1239.
7. **Grants:** replace application-based grants (SB 1278/HB 2423) with a formula payment per new permitted unit per capita, from Census Building Permits Survey data.
8. **Small-estate affidavit:** make SB 1203/HB 2172 (small-estate home affidavit) mandatory statewide, not a county opt-in.
9. **Single-stair:** turn SR 348 (single-stair study) from a study into a statutory directive with a deadline.

9. Recommendations

1. **Pass a single statewide ADU bill early in the session,** combining the House-passed HB 2186 with the Senate's 14-day deemed-approval process.
2. **Move occupancy reform (SB 1263) early.**
3. **Introduce standalone Senate bills on parking mandates, minimum lot size reform and manufactured homes,** building on the SB 1126 coalition, and House bills on lot size and manufactured homes.
4. **Introduce a bill for housing on faith-owned and state-owned land,** a named action in the Governor's plan and BPN's top priority among new bills, and consider adding land owned by other governmental entities such as counties, school districts and transit agencies. Pair it with faster land bank disposition.
5. **Make local permitting faster, more certain and accountable.** Staff approval against clear standards, an optional third-party review track on a deadline, and fee refunds when towns lose. The Governor's plan calls for "speed, certainty, and efficiency" in local approvals (p. 31), and 79% of voters, including 78% of Republicans, back permitting reform. No bill has been introduced.
6. **Advance parking mandate reform (HB 2155), commercial-zone housing (SB 1239, covering all municipalities) and missing middle (HB 2185)** as standalone bills.
7. **Settle enforcement alongside the standards,** favoring complaint-driven review over state audits of 2,560 municipalities.
8. **Introduce a transit-oriented development bill** to match the Governor's call in the budget address.
9. **Back the plan's financing tools** alongside the zoning bills: the Residential Reinvestment Tax Credit, a higher PHARE cap, funds for small builders and the state housing credit for small projects.
10. **Require regular property reassessment** (SB 567 and the Mazzocco-Kinkead House memo), so new homes stop paying higher effective tax rates than older ones.
11. **Pursue a housing bond** for a mixed-income revolving loan fund (the Montgomery County, Maryland model) and home repair, building on the Governor's $1 billion bond-backed fund.
12. **Legalize single-stair apartment buildings up to six stories by statute,** building on the 14 senators who signed SR 348, rather than waiting on a study.
13. **On the separate preservation track, pass tangled-title reform (SB 890), fund home repair (HB 1650/SB 876) and expand the historic tax credit's program cap, not just its per-project cap,** alongside, not instead of, the supply bills.
14. **Release the Municipalities Planning Code study (SR 211).** Its scope covers single-family zoning, lot sizes, setbacks and missing middle, and it was due in October 2026.

Method and caveats

- **Data:** bill text, sponsors, cosponsors, histories and roll calls from palegis.us (fetched Nov 5, 2026); member-level votes from the PA Housing Votes tracker plus palegis roll calls; Governor statements from the budget address and Housing Action Plan (printed page numbers).
- **Scoring:** effectiveness rewards self-executing statewide standards; admin burden and fiscal cost are inverted (5 = no agency capacity needed; 5 = no state cost), and a bill scoring 0-1 on admin cannot rank above Tier 3. Fiscal cost: 4 = administrative cost only or opt-in local revenue, 3 = redirects existing state money, 2 = new sizable spending, 1 = large recurring appropriation or tax expenditure. Lawmaker support is computed, not judged. Concepts are reported as a policy score and readiness; bills as one combined score. Supply and preservation are scored the same way but ranked separately. We do not score housing units unlocked, because no estimates exist.

- **Caveats:** November 2026 results were unofficial at the time of writing; counts exclude members not returning in 2027, and new members have no record yet. Preservation bills score low on effectiveness by design.

Appendix A: ranked supply bills

Cosp. = cosponsors listed on the bill at palegis (Democrats / Republicans), not counting the prime sponsor. E effectiveness ×3 · A low admin burden ×2 · G Governor ×2 · C low fiscal cost ×2 · S lawmaker support ×3; score out of 60. † Capped at Tier 3 because its admin score is 0-1. SB 1126 (2023-24 zoning omnibus) is the concept source, not a vehicle, and SR 211 (MPC study) is already adopted; neither is ranked.

#	Bill	Title	Prime sponsor	Cosp. (D / R)	Tier	E	A	G	C	S	Score
1	HB 2186	Accessory Dwelling Units	Rep. Inglis (D)	26 (24 / 2)	Tier 1	5	5	5	5	3.9	**56.7**
1	SB 1256	Accessory Dwelling Units (Collett)	Sen. Collett (D)	6 (6 / 0)	Tier 1	5	5	5	5	3.9	**56.7**
3	SB 1263	Municipal Occupancy Reform (Golden Girls Law, Senate)	Sen. Saval (D)	11 (10 / 1)	Tier 1	5	5	5	5	3.1	**54.3**
4	SB 1346	Accessory Dwelling Units (Senate)	Sen. Rothman (R)	12 (8 / 4)	Tier 1	4	5	5	5	3.9	**53.7**
5	HB 2109	Occupancy Reform (Golden Girls Law)	Rep. Khan (D)	25 (24 / 1)	Tier 1	3	5	5	5	3.1	**48.3**
6	SB 1239	Residential in Commercial Zones	Sen. Coleman (R)	3 (1 / 2)	Tier 1	5	5	5	5	0.8	**47.4**
7	HB 2155	Parking Flexibility	Rep. Scott (D)	10 (9 / 1)	Tier 1	5	5	5	5	0.4	**46.2**
8	HB 1446	Redevelopment of Malls, Greyfields and Brownfields (tax abatement)	Rep. Siegel (D)	10 (9 / 1)	Tier 1	2	4	4	4	4.6	**43.8**
9	HB 1459	Multi-Family Housing in Commercial Zones	Rep. Siegel (D)	14 (14 / 0)	Tier 1	4	4	5	5	0.8	**42.4**
10	SB 1277	Property Tax Abatement for Housing Redevelopment	Sen. Stefano (R)	5 (1 / 4)	Tier 1	2	4	3	4	4.6	**41.8**
11	SB 1279	Regulatory Compliance Officer for Housing	Sen. Phillips-Hill (R)	4 (0 / 4)	Tier 2	4	3	4	4	2.5	**41.5**
12	HB 2185	Duplex/Triplex/Fourplex in Single-Family-Only Zones	Rep. Inglis (D)	17 (16 / 1)	Tier 2	4	4	4	5	0.9	**40.7**
13	HB 1975	Objective Design Standards / Staff Review	Rep. Siegel (D)	20 (20 / 0)	Tier 2	3	5	3	5	0.2	**35.6**
14	HB 2367	RACP for Housing Development	Rep. Boyd (D)	17 (17 / 0)	Tier 2	2	3	5	3	1.0	**31.0**
14	SB 294	RACP for Housing (Senate)	Sen. Hughes (D)	9 (8 / 1)	Tier 2	2	3	5	3	1.0	**31.0**
16	SR 348	Single-Exit Stairwell Study	Sen. Street (D)	14 (10 / 4)	Tier 2	1	4	3	4	1.3	**28.9**
17	HB 2428	Residential Construction Workforce Training Grant	Rep. Solomon (D)	9 (6 / 3)	Tier 2	1	3	5	4	0.1	**27.3**
18	HB 2434	Expedited High Density Housing Approval	Rep. Solomon (D)	15 (13 / 2)	Tier 3†	1	0	4	4	2.7	**27.1**
18	SB 1281	Pre-Approved Housing Plans	Sen. Rothman (R)	6 (0 / 6)	Tier 3†	1	1	3	4	2.7	**27.1**
20	HR 484	Housing Accelerator Study	Rep. Solomon (D)	9 (6 / 3)	Tier 3	1	4	3	4	0.1	**25.3**
21	SB 567	Regular cyclical countywide property reassessment	Sen. Fontana (D)	3 (3 / 0)	Tier 3	3	3	0	4	0.2	**23.6**
22	HB 2423	Residential Economic Development District Grant Program	Rep. Solomon (D)	14 (12 / 2)	Tier 3†	2	1	4	2	1.1	**23.3**
22	SB 1278	Residential Economic Development District Grant Program (Senate)	Sen. Picozzi (R)	3 (2 / 1)	Tier 3†	2	1	4	2	1.1	**23.3**
24	HB 2445	Office of Housing Opportunity	Rep. Solomon (D)	16 (14 / 2)	Tier 3†	1	1	5	3	0.4	**22.2**
25	HB 2192	Commonwealth Housing Council	Rep. Smith-Wade-El (D)	22 (22 / 0)	Tier 3	0	2	4	4	0.4	**21.2**
25	HB 2430	Housing Ombudsman	Rep. Solomon (D)	14 (12 / 2)	Tier 3	0	2	4	4	0.4	**21.2**

Appendix B: preservation bills (ranked separately; same columns)

#	Bill	Title	Prime sponsor	Cosp. (D / R)	E	A	G	C	S	Score
1	HB 2124	Transfer-on-Death Deeds for Real Property	Rep. Briggs (D)	23 (12 / 11)	2	5	5	5	3.9	**47.7**
2	SB 890	Heirs Property Partition + Transfer-on-Death Deeds	Sen. Bartolotta (R)	1 (0 / 1)	2	4	5	5	3.9	**45.7**
3	HB 1498	Uniform Partition of Heirs Property	Rep. Rabb (D)	17 (13 / 4)	2	4	4	5	3.9	**43.7**
4	HB 1572	Historic Preservation Tax Credit: per-taxpayer cap to $1.5M	Rep. Goughnour (D)	21 (21 / 0)	2	4	3	4	3.4	**38.2**
4	SB 1356	Historic Preservation Tax Credit: per-taxpayer cap to $1.5M	Sen. Flynn (D)	6 (4 / 2)	2	4	3	4	3.4	**38.2**
4	SB 1394	Historic Preservation Tax Credit: per-taxpayer cap to $1.5M; nonprofit owners eligible	Sen. Farry (R)	16 (14 / 2)	2	4	3	4	3.4	**38.2**
7	HB 2172	Small-Estate Primary Residence Affidavit	Rep. Scott (D)	9 (9 / 0)	1	3	4	4	3.9	**36.7**
7	SB 1203	Small-Estate Primary Residence Affidavit	Sen. Malone (D)	4 (4 / 0)	1	3	4	4	3.9	**36.7**
9	HB 1650	Home Preservation Grant Program (Whole-Home Repairs successor)	Rep. Powell (D)	36 (33 / 3)	2	2	5	1	3.4	**32.2**
9	SB 876	Home Preservation Grant Program (Senate)	Sen. Argall (R)	18 (14 / 4)	2	2	5	1	3.4	**32.2**